

one asked what yt was, & he sayde, "a Cocke;" then quoth he, "yt is a very Bad cocke, you are beste wryte ouer his heade 'this ys a Cocke,' or else they will saye it is a goose." The Lo. Northampton [said] that the propertie of a good Cocke ys to be *vocalis* to Calle men to there woorke, viz. to there lawfull vocation, but heere was a Badcocke indeede that Called them to this vnlawfull woorke.'

Lord North-
ampton's
joke

'Another Cause of hearinge, Russe, plaintiff, and Fraunklin, defend^{ts}, for Forgerye of a deede of Feoffem^{ts}; but yt was proued by 5 wytnesses that the partye did sealle & delyuer the Deede, & that the same was reade vnto him, so yt Coulede be noe Forgerye, albeit the Clerke had inserted other matter in the Deede then the partye gaue him instructions for, he seallinge & delyueringe the same as his Deede. & so he was acquyted & dysmissed.'

RUSSE
v.
FRANKLIN
Forgery

[p. 316]

Acquittal

In Camera Stellata, coram Consilio ibidem, Veneris, 30 Octobr. 1607.¹

1607
Oct. 30

'Cause of hearinge betwene Rowlie, plaintiff, & Penkethe, defend^{ts}, for matter of Riote vpon the sabaothe daye in the time of diuine seruice, comminge wth a Carte wth vittaille & other prouision, wth men & women, & entringe into a barne, & holdinge possession againste Irelande, a Justice of peace. but the proces was not dulye serued vpon the principall defendaunte, but vpon one of the Defendauntes onely, w^{ch} albeit it be sufficiente for an apparaunce or to make aunswere, yet *ad audiendum iudicium* it is not sufficiente; & therefore althoughe they were guyltie yet the Courte woulde not sentence them: & the Lo. Ch. Justice Coke sayde that albeit the Common lawe did not punishe the breache of the Sabbaothe daye, yet for his parte he woulde binde them to there good behauioure that vsed prophanation of that Daye, & he had good warraunte so to doe.'

ROWLIE
v.
PENKETHE
Riot

¹ Seven Councillors and Judges were present.